

THE KING'S BENCH (FAMILY DIVISION)
_____ **Centre**

BETWEEN:

Petitioner/Applicant

- and -

Respondent

AFFIDAVIT OF _____

In support of an order authorizing a court official to request **locate/financial** information for the **enforcement of a support order** pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada)

SWORN/AFFIRMED: _____

(name, address, e-mail, and telephone number of party filing)

THE KING'S BENCH (FAMILY DIVISION)
_____ **Centre**

BETWEEN:

Petitioner/Applicant

-and-

Respondent

AFFIDAVIT OF _____

I, _____, of the City/Town of _____, in
(Full name of affiant)
the Province of Manitoba,

SOLEMNLY SWEAR/AFFIRM THAT:

1. I am seeking to enforce the support order pronounced

_____ by _____.
(specify date) (specify Judge, Court, and province/territory/country)

I have attached a copy of this order as Exhibit "A" to this affidavit.

2. I make this affidavit in support of an application under section 7 of the
Family Orders and Agreements Enforcement Assistance Act (Canada)
to request that the court make an order under section 10 of that Act to

authorize an official of the court to apply for the release of information under section 12 of that Act for the above-mentioned purpose.

3. The application under section 7 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) is made for the following reasons:

a. _____
(Name of the person to whom the requested information relates)

is in breach of the support provisions of the order attached as Exhibit “A” to this affidavit and is in arrears of support under that order.

(Strike out paragraph (b) if not applicable)

b. Income information for _____

(Name of the person to whom the requested information relates)

is needed for the enforcement of the support provisions.

(Strike out paragraph (c) if not applicable)

c. _____ cannot be located
(Name of the person to whom the requested information relates)

for the purpose of enforcement of the support order.

4. The information to be requested under section 12 the *Family Orders and Agreements Enforcement Assistance Act* (Canada) relates to

(Name of the person to whom the requested information relates)

(Complete paragraphs 5 to 11 if the application under section 7 of the Family Orders and Agreements Enforcement Assistance Act (Canada) is made ex parte (without notice to the other party). Strike out paragraphs 5 to 11 if the application is made with notice to the other party)

5. Reasonable steps have been taken to locate

(Name of the person to whom the requested information relates)

a. Those steps are:

- i. _____
- ii. _____
- iii. _____

6. _____ has not been located.
(Name of the person to whom the requested information relates)

7. The sole purpose of the application is to obtain information to enforce a support order.

8. I (am/am not) subject to any court order, agreement, undertaking or recognizance or any other document of a similar nature restricting communication or contact with _____

(name of the person to whom the requested information relates)

or with the child/children that is/are or may be the subject of the support order;

(strike out the following if there are no documents restricting communication or contact with the person or with the child or children referred to above)

I have attached (a copy/copies) of any documents restricting communication or contact with the person or with the child/children referred to above as Exhibit “B” to this affidavit.

9. There (are/are no) proceedings respecting any restrictions referred to in paragraph 8.

10. I (have/have not) caused or attempted to cause physical harm to _____ or to the
(Name of the person to whom the requested information relates)
(child/children) that (is/are) or may be the subject of the support order and I (have/have not) caused them to fear for their or someone else’s safety or security.

11. I (have/have not) been charged with or found guilty of an offence against _____
(Name of the person to whom the requested information relates)
or the child/children that is/are or may be the subject of the support order.

12. The information is necessary to enforce a support order.

13. The information will only be used for the purpose identified in this affidavit.

14. I make this affidavit in good faith.

SWORN (or AFFIRMED) before me)
in _____, Manitoba)
this ____ day of _____, _____.)
)

Signature of affiant

Deputy Registrar for King's Bench or
A Commissioner for Oaths in and for
The Province of Manitoba
My Commission Expires: _____